

Smt C Krishnaveni D/O Sri. C. ... vs Sri D Ramesh S/O Late Subramanian on 4 October, 2010

Bench: K.L.Manjunath, B.Manohar

_ AND; _;f' ''

IVIFA 9082 / 2008

_.. 1 VAALAA

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 4TH DAY OF OCTOBER, 2010j"----.c

PRESENT 4 V it

THE HONBLE MRJUSTICE K.L.MANqoNATH_e'w. V" 1%

AND it '

THE HON'BLE MR.JI}STTCi:2__13;'B{ii°LN0I%Lé\R'v = V' K

M.F.A.No.9082\E2008 V'(1«~c)_ ' it

BETWEEN: '' it 1'

Smt.C.KI'ishnaveni, :

D/o Sri C.Chandrase1<.ar, _ ' '

Aged about 35 years,-._ j: j

Residing at No.8_8, _ _ "

9-A Cross, 3'€*1\«i:1:n;"'-"'?''.__ »

Prashanth Nagar; . _ "

Bangalore'~560_0,79."if; APPELLANT

{By Sri Shi\}'acharan* T., Advs.}

8/ (1 late Subra'mar;ian,

Aged'-tabo'ut.°38 ye'afs,

Residing at No';90/ 1.

_Mc Ni'c.hol»a;s' Road,

Chetpur ~~,

" " -- ---(; "11enenai--60:0 031. ... RESPONDENT

>1=** This Miscellaneous First Appeal is □led under Section of FC Act, against the judgment and decree dated " '~'9.6.2008 passed in M.C.No.769/2007 on the file of the III Add1.Judge, Family Court, Bangalore, allowing the petitioner M2,...

□led under Section 13(l)(i)(i--b) of the Hindu Marriage Act for dissolution of marriage. 7 This Appeal coming on for Orders this day, 4' J.. made the following-

JUDGMENT.

1. The appellant was the petitioner before the learned Judge, Family Court, Bangalore. In VM.Cll.No.769 said C's petition was filed by the respondent on the ground that the respondent has deserted the appellant. The appellant sought that the respondent The Trial Court has allowed the appellant for grant of divorce its order dated 16.2.2008. While allowing the petition, a permanent alimony of Rs. Two Lakhs has been awarded. The respondent being satisfied with the permanent alimony in granted to her in the present appeal is filed.

2. The learned Counsel for the appellant, the Trial Court; did not consider that the respondent is having a flat at Chennai and is getting a rent of Rs.10,000/-- and . Therefore the permanent alimony granted by the court below is inadequate. In the circumstances, the present appeal is filed.

3. Having argued the matter at length, learned Counsel for the appellant submits that the appellant may be to withdraw the appeal with liberty to avail other relief to claim maintenance for herself and to her children.

4. Granting such liberty, the Appeal is Withdrawn.

Judge in A.S.D/4.

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